IN THE NATIONAL COMPANY LAW TRIBUNAL

BENGALURU BENCH

IN THE MATTER OF

HOTHUR MOTORS PRIVATE LIMITED
(Transferor Company)
AND
MINERA STEEL AND POWER PRIVATE LIMITED
(Transferee Company)

C.P (CAA) No. 03/BB/2018
U/S 230 to 232 of the Companies Act, 2013

Hothur Motors Private Limited
811/2, NH 63, Hospet Road,
Alipur, Bellary
Karnataka-583105 - Petitioner / Transferor Company

And

C.A (CAA) No. 26/BB/2018
U/S 230 to 232 of the Companies Act, 2013

Minera Steel and Power Private Limited
811/2, NH 63, Hospet Road,
Alipur, Bellary
Karnataka-583105 - Petitioner / Transferee Company

Order Delivered on: 07th December 2018

For the Petitioners : 1) Mr. Perikal K. Arjun,
Advocate,
M/s J. Sagar Associates

For the Registrar of Companies: 1) Mr. B. S. Venkatnarayana,
Advocate

Per: **Hon'ble Shri Ashok Kumar Mishra, Member (Technical)**

Heard on: 22.01.2018, 01.02.2018, 12.03.2018, 09.04.2018, 07.05.2018, 31.05.2018, 13.06.2018, 26.07.2018, 14.08.2018, 07.09.2018, 18.09.2018, 03.10.2018, 22.10.2018, 08.11.2018 and 26.11.2018

COMMON ORDER

1. The Company Petitions were filed on behalf of the Petitioner Company/Transferor Company under Section 230 to 232 of the Companies Act, 2013 praying that the

Scheme of Amalgamation where under **Hothur Motors Private Limited** (Petitioner/Transferor Company) is proposed to be amalgamated with **Minera Steel and Power Private Limited** (Petitioner/ Transferee Company), be sanctioned by the Tribunal, with or without modifications so as to be binding upon all the Shareholders and Creditors of the Petitioner Companies.

2. The averments made in the Company Petitions are briefly described hereunder:-

A. The Petitioner Companies seek an order for sanctioning the Scheme of Amalgamation whereby Hothur Motors Private Limited (Petitioner/Transferor Company) is proposed to be amalgamated with Minera Steel and Power Private Limited (Petitioner/Transferee Company).

B. The Petitioner/Transferor Company was incorporated on 14th June, 2005 under the name and style of 'Hothur Motors Private Limited' under the jurisdiction of the Registrar of Companies, Karnataka bearing CIN **U35911KA2005PTC036545**. The Registered office of the Petitioner/Transferor Company is at 811/2, NH 63, Hospet Road, Alipur, Bellary, Karnataka-583105.

C. The object of the Petitioner/ Transferor Company as set out in its Memorandum of Association are as follows:

i. To carry on in India and elsewhere the business of manufacturing, buying, selling, re-selling, hiring, sub-contracting, altering, importing, exporting, improving, assembling, distributing, servicing, repairing, stocking, supplying, leasing, retailing, wholeselling, fabricating, converting, finishing, installing, designing, modifying, reconditioning, developing, cleaning, renovating, and to deal in all descriptions, specifications, systems, models, shapes, sizes, dimensions, capacities, applications, and uses of scooters, mopeds, motor cycles, cycles, three wheelers, motor cars, exchange of used vehicles and other types of automobiles for transporting passenger and goods whether propelled by any form of power.

ii. To carry on the business of manufacturing, buying, selling, re-selling, trading, importing, exporting, distributing, supplying, altering, improving, assembling, cleaning, servicing, laminating, reconditioning, renovating, designing, developing, modifying and to act as stockists, franchisers, agents, distributors, brokers, lessors, wholesalers, retailers or otherwise to deal in all types, varieties, models, shapes, sizes, specifications, descriptions, applications and uses of replacement parts, spare parts, systems, assemblies, accessories, tools, implements, motors, power units,

transmission and propulsion systems, chassis, bodies, substances, dies, jigs, equipments, structures, moulds, gauges, beams and other allied goods, articles and other automobiles of all kinds and descriptions.

iii. To carry on the business to own, lease, manage, run, establish, install and build workshops, garages, painting units, retreading units, battery service station, fuel stations, upholstery units, body building units, and to convert, cure, finish, handle, fabricate, hire, alter, improve, clean, service, repair, shape, paint, turn to account, weld, renovate, import, export, buy, sell, all descriptions, specifications, varieties, sizes, shapes, and dimensions, capacities, applications, and uses of spare parts, components, accessories, fittings, consumables and incidental goods for the foregoing purposes.

D. The latest authorised share capital as on 31st March, 2016 of the Petitioner/ Transferor Company is Rs.2,00,00,000/- (Rupees Two Crores only) divided into 20,00,000/- Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Petitioner / Transferor Company is Rs.2,00,00,000/- (Rupees Two Crores only) divided into 20,00,000/- Equity Shares of Rs.10/- each, fully paid up.

E. The Board of Directors of the Petitioner/ Transferor Company passed a resolution on 03rd March, 2017 approving and adopting the Scheme of Amalgamation of the Petitioner/ Transferor Company with the Transferee Company, subject to the directions and sanctions of NCLT.

F. The Petitioner/ Transferor Company had filed Company Application No. (CAA) 56/BB/2017 before this Tribunal for dispensation of the meetings of Equity Shareholders and Unsecured Creditors of the Transferor Company. This Tribunal vide its orders dated 14th December, 2017 allowed the Application and dispensed with convening of meeting of Equity Shareholders, Unsecured Creditors and Unsecured Trade Creditors of the Transferor Company.

G. The Petitioner/Transferee Company was incorporated on 15th February, 2006 under the name and style of 'KMMI Steel Private Limited' under the jurisdiction of the Registrar of Companies, Karnataka bearing CIN **U27101KA2006PTC038481.** Subsequently, on 11th February 2011, the name of the Transferee Company was changed to '**Minera Steel & Power Private**

Limited' The Registered office of the Petitioner/Transferee Company is at 811/2, NH 63, Hospet Road, Alipur, Bellary, Karnataka-583105.

H. The object of the Petitioner/ Transferee Company as set out in its Memorandum of Association inter alia is to set up plant(s) for manufacture iron & steel products through rotary/vertical kiln(s), cupolas, blast furnaces, basic oxygen furnaces, energy optimising furnaces, smelters, electric oxygen furnaces, induction furnaces, LD converters, similar such modern equipments and continuous casting and rolling mills/plants with related plants such as sponge iron/hot briquetted iron, pig iron, sinter plant, oxygen, nitrogen, argon plants, lime & dolomite calcinations plants, using or not various grades of sponge iron/hot briquetted iron and/or scrap for producing all kinds of iron and steel including special, spring, stainless, forging and alloy steel ingots, slabs, billets, etc.

I. The latest authorised share capital of the Petitioner/ Transferee Company is Rs.1,10,00,00,000/- (Rupees One Hundred and Ten Crores only) divided into 11,00,00,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Petitioner/ Transferee Company is Rs. 99,00,00,000/- (Rupees Ninety Nine Crores only) divided into 9,90,00,000/- Equity Shares of Rs.10/- each, fully paid up. The Copy of Audited Financials of the Petitioner/ Transferee Company as on 31st March, 2016 has been filed with the Petition.

J. The Board of Directors of the Petitioner/ Transferee Company have approved and adopted the Scheme of Amalgamation at its respective meeting held on 03rd March, 2017.

K. The Petitioner/ Transferee Company had filed Company Application No. (CAA) 73/BB/2017 before this Tribunal for dispensation of the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Petitioner Company. This Tribunal vide its orders dated 13th March, 2018 allowed the Application and dispensed with convening of meeting of Equity Shareholders, Secured Creditors, Unsecured Creditors and Unsecured Trade Creditors of the Petitioner Company.

3. This Tribunal vide order dated 01st February, 2018 directed the Petitioner/ Transferor Company to issue Notice to the following authorities Income Tax Authorities, the

Official Liquidator, the Registrar of Companies and Regional Director and also to have an advertisement of Notice of Petition be carried out in the **'The Hindu'**, an English daily Newspaper and **'Kannada Prabha'** a Kannada daily Newspaper and stating the next date of hearing was on 12th March, 2018.

4. In pursuant to the same the Petitioner/ Transferor Company has filed an Affidavit of Compliance dated 09th March, 2018 of the authorized signatory of the Petitioner Company for having taken paper publication as directed and also has furnished the copy of the paper publication for having taken Advertisement in **'The Hindu'**, an English daily Newspaper and **'Kannada Prabha'** a Kannada daily Newspaper.

5. This Tribunal vide order dated 07th May, 2018 directed the Petitioner/ Transferee Company to issue Notice to the following authorities Income Tax Authorities, the Official Liquidator, the Registrar of Companies and Regional Director and also to have an advertisement of Notice of Petition be carried out in the **'The Hindu'**, an English daily Newspaper and **'Udayavani'** a Kannada daily Newspaper and stating the next date of hearing was on 28th June, 2018.

6. In pursuant to the same the Petitioner/ Transferee Company has filed an Affidavit of Compliance dated 02nd June, 2018 of the authorized signatory of the Petitioner Company for having taken paper publication as directed and also has furnished the copy of the paper publication for having taken Advertisement in **'The Hindu'**, an English daily Newspaper and **'Udayavani'** a Kannada daily Newspaper.

7. The Registrar of Companies, Karnataka has filed the observations dated 13th July, 2018 making the following observations:

   i) Transferor Company has not filed GNL-1 e-form attaching the scheme.

   ii) At clause no. 14.1 of the scheme it is stated that the Transferee Company is not required to pay any fee/stamp duty on the clubbing of the authorised capital of the Transferor Company with it. In this regard as per Section 232(3)(i) of the Companies Act, 2013, Transferee Company has to pay the differential fee if any after setting off fee already paid by the transferor Company on its authorised capital.

iii) As per Clause 17 at Part C of the Scheme, prior to giving effect to the amalgamation, accumulated losses of the Petitioner Company to the extent of Rs.2,95,28,619 shall be set off against the revalued assets of the Transferor Company of Rs.1,78,46,181. The balance amount of accumulated losses of the Petitioner Company of Rs.2,00,00,000 by proportionally cancelling the equity shares of all equity shareholders of Transferor Company. Hence, the scheme is proposing the reduction of share capital of the Transferor Company from its present paid up capital of Rs.2,00,00,000/- to 83,17,562/-. As per the Scheme, it is an integral part. The proposal of set off of accumulated losses of the Petitioner Company against the revalued assets of the Transferor Company need to be examined by Income Tax on the tax point of view.

iv) There are no prosecutions, complaints, technical scrutiny/inspection pending in this office on the Petitioner Companies.

8. Regional Director, Ministry of Corporate Affairs, South-East Region, Hyderabad represented by Registrar of Companies has filed Affidavit dated 13th August, 2018 making the following observations:

a. Both the Transferor and Transferee Company have common shareholding and all the Shareholders of the Transferor Company are Shareholders of the Transferee Company.

b. In clause 12.3 of the Scheme, it is stated that in the event that the Transferee Company restructures its equity share capital by way of share split/consolidation/issue of bonus shares during pendency of the Scheme, the Share exchange Ratio shall be adjusted accordingly to take into account the effect of any such corporate actions. Any such restructuring requires the approval of NCLT.

c. As per clause 10.3 of the scheme, accumulated losses of the Transferor company to the extent of Rs.2,95,28,619/- shall be set off against the revalued assets of the Transferor Company of Rs. 1,78,46,181/- and paid up capital of Rs.1,16,82,438/-, prior to giving effect to the amalgamation of the Transferor company with the Transferee Company. The petitioner company has not stated in the Scheme how the reduction of capital would be carried out. On the contrary, the Share Exchange Ratio at clause 12 proposes issue of equity shares to the shareholders of the Transferor Company when 11,68,243 equity shares are being reduced out of the total paid up capital of 20,00,000 equity shares of Transferor Company without clarifying in what proportion the shares of the existing shareholders of Transferor

Company will be reduced. Also, in respect of the ROC's observations regarding setting off of a accumulated losses against revaluation of assets as an integral part of the Scheme to be examined under IT Act, it is submitted that the reduction proposed is nothing but setting off of actual losses against unrealised gains which is not allowable.

However, the Petitioner Company vide its email letter dated 25.07.2018 has enclosed a copy of the judgment of the Hon'ble high Court of Karnataka in CP No. 160/2015 wherein the Hon'ble High Court has allowed the reduction of capital for setting of accumulated losses against revaluation of reserves. It is notices from the said judgment that the reduction was allowed upon furnishing of an undertaking by the Petitioner Company u/sec.129(5) of the Companies Act, 2013 for disclosure of deviation in accounting standards in the subsequent financial statements. Hence, this Hon'ble Tribunal may allow the petition subject to furnishing of such an undertaking by the Petitioner Company.

d. The Petitioner Company vide its letter dated 26.07.2018 has served a copy of the Application filed for change of Appointed Date from 01.04.2016 to 01.04.2018 and the same is subject to the orders of the Hon'ble NCLT.

e. Transferor Company has not filed GNL-1 e-form attaching the Scheme.

f. At Clause No. 14.1 of the scheme it is stated that the Transferee Company is not required to pay any fees/stamp duty on the clubbing of the authorised capital of the Transferor Company with it. In this regard as per section 232(3)(i) of the Companies Act, 2013 Transferee Company has to pay the differential fee if any after setting off the fee already paid by the Transferor Company on its authorised capital.

9. The Official Liquidator attached to the High Court of Karnataka has filed report OLR No. 55/2018 dated 10th April, 2018 making the following requests:

1) That the Official Liquidator may be permitted to appoint a Chartered Accountant from the panel approved by the Hon'ble High Court of Karnataka for scrutiny of the books of account and records of Transferor Company and to submit reports on the affairs of the Company.
2) That the Petitioner Company may be directed to pay the professional fees of the Chartered Accountant as may be mutually agreed and that in case the Chartered Accountant charges exorbitant fee which is not acceptable to the Transferor Company, the Official Liquidator shall appoint other Chartered Accountant by cancelling the appointment of the Chartered Accountant.

9. The Official Liquidator attached to the High Court of Karnataka has filed report OLR No. 76/2018 dated 18th June, 2018 making the following submissions:

(1) That Rao & Emmar, Chartered Accountants were appointed to scrutinise the books of account and records of the Transferor Company and submit their report, enabling the Official Liquidator to submit his report under Section 230-232 of the Companies Act, 2013.

(2) That upon scrutiny of the books and record and other material made available by the Transferor Company, Rao & Emmar., Chartered Accountants have submitted report dated 12.06.2018 with the Official Liquidator as under-

i) We have obtained all the information and explanations, which to the best of our knowledge and belief was necessary for the purpose of scrutiny of books and papers of the Transferor Company.

ii) We are of the opinion that the Company has maintained proper books of accounts, papers, Statutory Registers, minutes and other records as required by Companies Act, 2013.

iii) We are of the opinion that the business has not been carried out with intent to defraud the creditors or any other persons or for any fraudulent purpose attracting the penal provisions of Section 339 of Companies Act, 2013.

iv) Neither has any person or officer or director of the Company misapplied or diverted or retained or became liable or accountable for any money or property of the Company or has been found guilty of any misappropriation, breach of trust in relation to the Company under Section 340 of the Companies Act, 2013.

v) Subject to the final observations made in Para VI of this report, we are of the opinion that the affairs of the Transferor Company have not been conducted in a manner prejudicial to the interest of the Members of the company or public interest. Para VI of the report states as follows:

a) The objectives of the both companies being merged are not similar as pronounced in the merger document submitted to the NCLT. The transferor company was engaged in dealership of automobile and

automobile parts whereas the transferee is engaged in manufacturing steel and allied products.

b) The merger is providing the transferor company to only close its operations and transfer all its assets to the transferee company which will result in reduction of compliances under various laws/ acts and also take the assets at revalued amount.

c) The transferor company has undertaken revaluation of immovable property which may result in saving income taxes in the merged entity wherein the book value will be taken as revealed cost as against the original cost.

d) An aggregate of Trade Payables to the extent of Rs.2,39,149/- is outstanding in the transferor company since the last two financial years. The Management is of the opinion that the same can be written back as they are no longer payable.

e) Trade receivables to the tune of Rs.13,50,485 is outstanding in the Transferor Company since the last 2 years and the Management is of the opinion that the same is no longer receivable and thus is to be written off as bad debts.

f) Inventory of Rs.42,18,369 lying in the books for more than 2 years comprise Stores and Spares which may be outdated as on date and thus are carried at cost in financial statements.

g) Cash of Rs.26 lakhs (approx) is being maintained since the last 2 years and the same is certified by the management vide certificate dated 07th June 2018.

h) The Transferor Company has leased out a building to Aryaa Krishna Automotives Private Limited (the Lessee). The Lessee is paying rent net off TDS u/s 1941 at 10%. Upon verification of the 26AS of the Transferor Company, it was observed that the Lessee has not deposited the TDS and neither has filed the returns. The same is not reflecting in the 26AS of the Transferor Company.

(3) That the application may be disposed off on its own merit after hearing the objections if any by other sectoral regulator and the Transferor Company may be dissolved without winding up.

10. On 11.07.2018, the authorised signatory of the Transferor Company filed IA No. 208 of 2018 and the authorised signatory of the Transferee Company filed IA No. 206 of 2018, both seeking for modification of the Appointed Date in the Scheme of Amalgamation from April 01, 2016 to April 01, 2018 and to permit the Applicant to carry out such modification in the Scheme of Amalgamation. On 03.10.2018, both IA No. 206 of 018 and IA No. 208 of 2018 have been allowed and the Appointed Date in the Scheme has been modified.

11. The Authorized Signatory of the Transferor Company has filed a Reply Affidavit dated 03rd September, 2018 in furnishing response to the Observations raised by Regional Director, Ministry of Corporate Affairs, South-East Region, Hyderabad represented by Registrar of Companies, which are as follows:

a) The Petitioner Company undertakes to comply with the provisions of Section 129(5) of the Companies Act, 2013 for disclosure of deviation on accounting standards in the subsequent financial statements, specifically in relation to reduction of capital by setting off accumulated losses against revaluation of reserves.

b) The Transferor Company has filed eForm GNL-1 on 23.08.2018 bearing SRN No. H03369899 reporting the application for change in appointed date.

12. The Authorized Signatory of the Transferee Company has filed a Reply Affidavit dated 03rd September, 2018 in furnishing response to the Observations raised by Regional Director, Ministry of Corporate Affairs, South-East Region, Hyderabad represented by Registrar of Companies, which are as follows:

a) The Transferee Company has not restructured its equity share capital per the terms of Clause 12.3 of the Scheme and the same is only an enabling provision. The Transferee Company undertakes to seek approval from the Hon'ble NCLT for any such restructuring as detailed in Clause 12.3 of the Scheme.

b) The Transferee Company has filed eForm GNL-1 on 23.08.2018 bearing SRN No. H03363769 reporting the application for change in appointed date.

c) The Transferee Company undertakes to pay the applicable differential fee and stamp duty on the increase of its authorised share capital after setting off the fee, if any, paid by the Transferor Company.

13. Regional Director, Ministry of Corporate Affairs, South-East Region, Hyderabad represented by Registrar of Companies has filed Affidavit dated 14th September, 2018 making the following observations:

i) The Transferee Company has undertaken to comply with the observations of the Directorate. Hence the Directorate does not have any objection in respect of the Transferee Company.

ii) However, in respect of the Transferor Company, the Petitioner Company in its Affidavit dated 03.09.2018 has undertaken to comply with the provisions of section 129(5) of the Companies Act, 2013 without replying to the query regarding reduction of capital of 11,68,243 equity shares and issue of new shares.

14. On 20.09.2018, the Counsel for the Petitioner Companies has filed copy of provisional Balance Sheet for the Financial Year 2017-18 for the year ending on March 31, 2018. On 20.09.2018, the Counsel for the Petitioner Companies has also filed a Memo of Compliance stating as follows:

i. As per the directions of the Tribunal, notice of hearing of the application for change in appointed date in the Scheme of Amalgamation have been served on the Regional Director and the Registrar of Companies and these authorities have made their observations on this application in the affidavit filed by the Central Government.

ii. Notice issued by the registry to the office of Income Tax was served by hand on 03rd September 2018 and the acknowledgment of the same is attached.

iii. Notice issued by the registry to the office of Official Liquidator was served by hand on 04th September 2018 and the acknowledgment of the same is attached.

15. Regional Director, Ministry of Corporate Affairs, South-East Region, Hyderabad represented by Registrar of Companies has filed Affidavit dated 03rd October, 2018 making the following observations:

a) Having examined the Affidavit dated 19.09.2018 submitted by the Petitioner Company to the Directorate, the Directorate does not have any objection to the scheme of amalgamation in view of the clarification furnished by the Petitioner.

16. The Counsel for the Petitioner has also filed on 27.11.2018, a copy of the order of Karnataka High Court in re ***Tata Advanced Materials Ltd.***, Company Petition No. 160/2015 dated 03.06.2016 which was referred to in the response to Regional Director.

17. After hearing the Counsel for the Petitioner Companies and considering the materials on record the Scheme appears to be fair, reasonable and is not detrimental against the Members or Creditors or contrary to public policy and the same can be approved,

THIS TRIBUNAL DO FURTHER ORDER as follows:

1) While Approving the Scheme, we make clear that this order should not be construed as an order in any way granting exemption from payment of Stamp Duty, taxes or any other charges, if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement which may be specially required under any law.
2) The Whole of the property, rights and powers of Transferor Company be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013, be transferred to and vest in the Transferee Company for all the state and interest of the Transferor Company therein but subject nevertheless to all charges now affecting the same; and
3) All liabilities including taxes and charges, if any and duties of the Transferor Company be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to section 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company without in any way obstructing compliance of depositing outstanding tax dues, if any; and
4) While approving the Scheme, we make clear that this order should not be construed as an order in any way granting exemption from payment of Stamp Duty, taxes or any other charges, if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement which may be specially required under any law; and

5) All proceedings now pending by or against the Transferor Company, if any, be continued by or against the Transferee Company; and

6) All employees of the Transferor Company will become employees of the Petitioner/Transferee Company without any break or interruption of service.

7) The tax implications, if any arising out of the scheme is subject to final decision of concerned Tax Authorities and the decision of the respective Tax Authority shall be binding.

8) The Petitioner Company shall within thirty days of the date of the receipt of this order cause a certified copy of this order along with a copy of scheme of Arrangement to be delivered to the Registrar of Companies for registration in accordance with Rule 25 (7) of Companies (Compromises, Arrangements And Amalgamations) Rules, 2016.

9) The Appointed Date will be **01st April, 2018** as given in the modified Scheme of Amalgamation.

10) The Petitioner Companies should ensure compliance of their respective affidavits dated 03rd September, 2018.

11) The Registrar of Companies, Karnataka shall ensure that the stamp duty as fixed by the Inspector General of Registration and Commissioner of Stamps is paid within stipulated time under relevant provisions of law; and

12) This is subject to compliance by the Petitioner Companies of the following prior to implementation of the Scheme :

a) The object clause of the Transferee Company should be made symmetrical so as to cover the objectives of the Transferor Company.

b) Revaluation of the immovable property by the Transferor Company shall be subject to payment of all due Income Taxes as against the original cost.

c) The aggregate of Trade Payables to the extent of Rs.2,39,149/- is outstanding in the transferor company since the last two financial years shall **not** be written back.

d) Trade receivables to the tune of Rs.13,50,485 is outstanding in the Transferor Company since the last 2 years shall **not** be written off as bad debts.

e) Stamp and fees as applicable have to be paid on accumulated authorized capital by the Transferee Company.

f) No deviation from the Accounting Standards shall be allowed, as mandated under the Companies Act, 2013.

g) The accumulated losses of the Petitioner Company cannot be set off against the revalued assets of the Transferor Company.

h) Clarification regarding reduction of shares of existing shareholders of the Transferor Company in the Share Exchange Ratio to be provided to the Registrar of Companies in line with Section 129(5) of the Companies Act, 2013.

i) No restructure of equity share capital shall take place during pendency of the Scheme. Any such restructuring ought to be done only by approaching the relevant authority under the Companies Act, 2013.

13) The Registrar of Companies should oversee the compliances before finally accepting the Scheme.

14) The Transferor Company or its authorised signatory is directed that after the completion of the process of amalgamation to handover the possession of the books of accounts and other relevant documents to the Transferee Company for the purpose of Section 239 of the Companies Act, 2013.

15) Any person shall be at the liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

ASHOK KUMAR MISHRA
(MEMBER, TECHNICAL)

RAJESWARA RAO VITTANALA
(MEMBER, JUDICIAL)

pv